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11. LAND USED FOR OPEN SPACE AND RECREATION



Photograph – Moulder Park

11.1 GENERAL CONTROLS LEP 2000 Cl 68

LEP 2000 removed the distinction between private and public open space that occurred under earlier planning instruments. The LEP identifies instead all land where the major activities associated with open space and recreation in the City occurs or is proposed.

Since 1993, the *Local Government Act* defines procedures for Council to manage public land. Open space land or land dedicated as a public reserve vested in Council is normally classified as "Community Land" which, as the name implies, is public land managed by the Council on behalf of the community. The other category of public land is "operational land", which recognises land held by councils for operational or commercial purposes. The *Local Government Act* identifies how community land may be used and managed. To avoid duplication between different Acts associated with the management of community land comprising open space in the City, LEP 2000 recognises the Community Land management function under the *Local Government Act*.

Because a range of uses may be appropriate in conjunction with private recreation uses (such as entertainment or accommodation facilities), the general controls of Zone 6 recognise that private land used for recreation may be used for a broader range of uses than public recreation and open space land.

For the purposes of the Plan, private recreation land refers to the following:

- Orange Golf Club

- Wentworth Golf Club (club house lease area)
- Towac Park Racecourse
- Waratahs Sportsground
- Newstead Bowling Club
- Orange City Bowling Club
- Orange Ex-Services Club (Bloomfield)

Parks and open space provide a range of functions:

- sport and recreation
- playgrounds
- environmental protection and enhancement
- pedestrian links
- buffer zones
- provision of additional green space in urban areas

Traditionally in the City, parks were located along waterways. This approach has been continued to provide for interconnecting open space areas ideal for bicycle and pedestrian paths and water-quality protection. Additional parks have been established throughout the urban area of Orange to ensure a distribution of public open space throughout the City.

The diverse range of functions, location, size and shape of public open space requires a broad-ranging planning approach to development of open space in the City.

11.2 LAND ACQUISITION WITHIN ZONE 6
LEP 2000 Cl 69

Under Former LEP 11, a separate Zone 6(c) identified land that was proposed for future public open space.

Under LEP 2000, one zone covers all land for use as open space and recreation land.

Land within zone 6 that is not currently used for organised recreation or that is under the care or control of Council may be subject to acquisition by Council.

Some privately-owned land has been zoned for open space and recreation under LEP 2000 as part of planned, open-space networks. These areas are mainly associated with corridors adjoining Rifle Range Creek and Ploughmans Creek. Other areas include ridge-top land off Icely Road and buffer areas in the vicinity of Sharp Road.

Most of the open space land adjacent to the creeks will be dedicated with development of associated land for residential or rural residential development.

Land at 79 Gardiner Road was identified in LEP 11 as future public open-space land for a connection of Machin Park. This zoning has been carried over in LEP 2000. A dwelling house is located on the land adjacent to the Gardiner Road frontage. The park linkages can be achieved without including the dwelling house.

Acquisition of private land for public open space will be carried out in accordance with Council's responsibilities under the *Land Acquisition (Just Terms Compensation) Act*.

PO 11.2-1 PLANNING OUTCOMES – OPEN SPACE ACQUISITION

1 Land that is within the Open Space Zone under Orange LEP 2000 as proposed public open space is acquired according to the land acquisition principles.

11.3 USE OF PUBLIC LAND WITHIN ZONE 6
LEP 2000 Cl 70

Community land procedures were introduced with the 1993 *Local Government Act*. These procedures require that Community Land is used according to Plans of Management that are subject to community consultation. Much of the land zoned for open space in Orange under the care and control of Council is classified as Community Land under the *Local Government Act*.

To avoid issues associated with conflicting provisions between Plans of Management and environmental-planning instruments, this clause provides that community land can be used for any purposes where the use is consistent with the relevant Plan of Management.

The LEP includes the following criteria to be considered for development of community land zoned for open space:

- the need for the proposed development on that land
- the impact of the proposed development on the existing or likely future use of the land
- how any proposed building complements the use of the land as public open space
- whether public use of, and access to, the site will be affected and to what extent

In considering an application for development of Community Land, Council will consider the above criteria to determine if the development fits in with the character and function of that open space land.

PO 11.3-1 PLANNING OUTCOMES – USE OF PUBLIC OPEN SPACE LAND

1 Land is used in accordance with the relevant adopted plan of management.

RELATED INFORMATION – USE OF PUBLIC LAND WITHIN ZONE 6

NSW Department of Local Government (2000) *Public Land Management*

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